

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504301	APPLE VS INDIAN SPRINGS GOLF CLUB LP	MOTION TO COMPEL PLAINTIFF JEFFREY APPLE'S DEPOSITION AND REQUEST FOR SANCTIONS BY INDIAN SPRINGS GOLF CLUB LP

Tentative Ruling: No tentative ruling. Motion was withdrawn on 7.21.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2601043	CALDERON, JR. VS BARNETT BARNETT BARNETT, LLC.	DEMURRER ON COMPLAINT OF RUBEN CALDERON, JR. BY BARNETT BARNETT BARNETT, LLC, JADA BARNETT, ELENA CZARNOWSKI, ELENA CZARNOWSKI AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013, JADE BARNETT AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The Code provides that unless the grounds for a demurrer are distinctly specified, it may be disregarded. (CCP § 430.60.) Where there are several grounds for demurrer, each must be stated in a separate paragraph; and must state whether the challenge is to the entire pleading or to some specific cause of action therein. (CRC 3.1320(a).) If several grounds are stated conjunctively in the same paragraph (e.g., "the complaint is uncertain and fails to state facts sufficient to constitute a cause of action"), the demurrer violates CRC 3.1320(a). If there are several causes of action in the complaint, a demurrer to the entire complaint may be overruled if any cause of action is properly stated. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 36.)